

TENTATIVE RULING

Case: Estrada v. Garcia
Case No. CV2025-2260

Hearing Date: July 9, 2026 **Department Fourteen** **9:00 a.m.**

OSC re: preliminary injunction

Defendants Daniel Navarrette Garcia and Rosa Maria Hernandez de Anda (collectively, “defendants”) filed an untimely opposition. (Minute Order (6/10/26) [“defense opposition due by June 29, 2026”].) Despite being untimely, the Court will consider defendants’ opposition. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers.”].)

Parties are **DIRECTED TO APPEAR** for an OSC hearing re: plaintiffs Felipe Estrada and Alicia Navarrete’s request for a preliminary injunction. Each side shall be limited to ten minutes of oral argument.

Motions to be relieved as counsel

On the Court’s own motion, Melanie De Marco’s motions to be relieved as counsel for defendants Daniel Navarrate Garcia and Rosa Maria Hernandez De Anda are **CONTINUED** to **August 26, 2026**, at 9:00 a.m. in Department Fourteen.

TENTATIVE RULING

Case: Iden v. FCA US, LLC et al.
Case No. CV2024-2815

Hearing Date: July 9, 2026 **Department Thirteen** **9:00 a.m.**

Plaintiffs Craig Iden and Jason Miller (collectively, “plaintiffs”) filed an untimely opposition. (Code Civ. Proc., § 437c, subd. (b)(2) [all papers opposing a motion for summary judgment must be filed with the court and a copy served on each party no less than twenty days before the hearing].) The Court declines to consider plaintiffs’ very late-filed opposition or any documents submitted in support thereof. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers.”].)

The Court rules on defendants FCA US, LLC (“FCA”) and Hoblit Chrysler Jeep Dodge’s (“Hoblit”) (collectively, “defendants”) motion for summary adjudication as follows:

- Defendants’ motion for summary adjudication as to the first cause of action (Civil Code section 1793.2(d)) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) The Court finds that defendants have met their initial burden to show that plaintiffs failed to present the subject vehicle for repair during the express warranty period and there was never a warranty repair made to subject vehicle during the warranty period. (Civ. Code § 1793.2, subd. (d); *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208 [“The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.”]; see *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101; UMFs 1, 2, 5-7.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, 862.)
- Defendants’ motion for summary adjudication as to the second cause of action (Civil Code section 1793.2(b)) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) The Court finds that defendants have met their initial burden to show that plaintiffs never presented the subject vehicle for warranty repair during the express warranty period and thus FCA did not fail to service or repair the subject vehicle within 30-days. (Civ. Code § 1793.2, subd. (b); UMFs 1, 2, 5-7.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar, supra*, 25 Cal.4th 826, at p. 862.)
- Defendants’ motion for summary adjudication as to the third cause of action (Civil Code section 1793.2(a)(3)) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) The Court finds that defendants have met their initial burden to show that plaintiffs never presented the subject vehicle for warranty repair during the express warranty period and thus FCA did not fail to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period. (Civ. Code § 1793.2, subd. (a)(3); UMFs 1, 2, 5-7.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar, supra*, 25 Cal.4th 826, at p. 862.)